The bill has been examined by the Joint Committee of the Parliament. The committee's recommendations did not change any of the contested provisions. Instead, it muddied the water further by doing away with the difference between personal and non-personal data, indirectly subjecting non-personal data to the same privacy protection. The Committee also expanded the authority of the government to use personal and non-personal data and grant exemptions. Fundamental right of life and liberty, from which the right to privacy is derived, which is actually against the government, has been turned on its head completely. The committee's recommendations do not seem to be in the interest of building the digital economy of India. The government would need to examine the entire matter afresh.

E-commerce Policy Proposal Continues to Queer the Pitch

Trade and commerce, like any other service sector, are an economic service and extremely amenable to digitalization. Transacted digitally, e-commerce has enormous advantages of cost, time and distance, owing to which it is disrupting traditional trade and commerce the world over.

There is no legitimate rationale for a separate law or policy for e-commerce, just as there is no logic in a separate law or policy for e-banking, e-accounting or BPO. However, Indian policymakers have been very sensitive to foreign companies selling products in India through both the brick-and-mortar model and e-commerce mode. Likewise, they have been averse to permitting foreign companies to invest in the trade and commerce business segment in India, again both in traditional and e-commerce mode.

The Department for Industrial Policy and Promotion (DIPP), renamed Department of Promotion for Industry and Internal Trade (DPIIT), has been in charge of FDI policy. India has evolved a restrictive FDI policy for trade and commerce over the years. There are distinctions in terms of wholesale